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MLAUZI SYNDICATE

Versus

BILBOES HOLDINGS (PVT) LTD

AND

PROVINCIAL MINING DIRECTOR N.O. MIDLANDS PROVINCE

AND

THE OFFICER IN CHARGE N.O ZRP INYATHI

IN THE HIGH COURT OF ZIMBABWE
MOYO J
BULAWAYO 20 NOVEMBER 2025

L Chimire, for the plaintiff
J Tshuma, for the 1st defendant

Special Plea

MOYO J: Plaintiff issued summons claiming;

a) An order declaring the purported cancellation of plaintiff's registration certificate of Calcite South Mine under 46920 and subsequent gazetting null and void
b) An order declaring that the registration of plaintiff's mining claim was regular and lawful as there is no exclusive prospecting order in favour of the 1st defendant covering the place where plaintiff's claim was registered.
c) An order directing 2nd defendant to survey and beacon the mining claim of the plaintiff as per the original map produced by the 2nd defendant within 14 days of the granting of this order.
d) An order directing the 2nd defendant to uplift any stoppage orders issued and directing it to carry on its mining operations.

e) An order interdicting defendants from interfering with plaintiff's mining operations or seeking to evict plaintiff from its mining claim.
f) An order that 1st defendant pays costs of suit at a higher scale.

1st defendant file a special plea, pleading the following;

"1. Plaintiff's claim is *res judicata* in that such claim was the subject matter of an action by and between the parties under cover of case number HC 187/19, XREF HC 2650/29. HB 79-22 granted involving the same subject matter.

2. On the 17th of March 2022, this court handed down a final judgment in terms of which it ordered plaintiff to be ejected from Calcite South Mine, Inyathi, Matabeleland North

3. In terms of the same judgment, plaintiff was ejected from Calcite South Mine, Inyathi, also known as Registration number 46920, plaintiff was then evicted.

4. Further and alternatively plaintiff has adopted wrong procedure regarding its claim for a declaratory order regarding mining claims which were lawfully cancelled.

Clearly from the decision in HB 79-22 the issue of applicant's rights on the land was canvassed. Whether plaintiff in that case withdrew their own issues at Pre Trial Conference stage in dealing with the counterclaim the court did pronounce itself on the plaintiff's title and ownership hence it ordered the eviction of the plaintiff from the mining claim. The fact that the plaintiff had withdrawn its issues for trial, did not mean that the court did not deal with the aspect of 1st defendant herein being the owner of the mining claim as it was as on that basis that the eviction suit succeeded.

Looking at the relief sought by plaintiff herein is an order at paragraph (e) of the summons, interdicting defendants (1st defendant included, from interfering with plaintiff's mining operations or seeking to evict plaintiff from its mining claim).

Clearly plaintiff is seeking to rescind the order granted in HB 79-22 which directed that it be evicted from the mining claim. Plaintiff is through this suit trying to restore what HB 79-22 an extant order of this court, took away from plaintiff.

This matter was clearly decided, 1st defendant's rights of occupation and ownership and plaintiff's lack thereof was pronounced by the court where it stated thus:- at page 4 of the judgment, 1st paragraph, the court stated as follows:-

> "------but what the 1st defendant seeks in my view is to confirm its rights to ownership and to eject plaintiff from a claim where the mining commissioner has already found in its favour in a mining dispute between the parties----"

This in essence means that those proceedings confirmed 1st defendant's rights to the land and also ordered that plaintiff be ejected from same. Plaintiff failed to defend that claim, now plaintiff wants to bring the same dispute clothed as a declaratur, to deal with the same substance and achieve the same results of taking away ownership from 1st defendant and giving it to plaintiff, then adding that plaintiff cannot be evicted yet the court has already ordered that plaintiff must be evicted.

I hold the view that the plea of *res judicata* is sustained in the substance of this matter.

Counsel for the 1st defendant argued that the plea of *res judicata* is being raised in the form of issue estopped, that is to say, plaintiff is estopped to raise the same subject matter that the court dealt with and pronounced itself on in HB 79-22.

The doctrine of issue estopped is based on the notion that a plea of *res judicata* is available even when the cause of action in the previous litigation was not identical, but where a dispute in respect of the same subject matter was resolved.

In the SA case of *Umhlaba ERF Properties CC* vs *Shell Downstream SA PTY Ltd and 3 Others* ZAGPJHC 13-25 paragraph 50 it was held that

> "Where the decision set up as a *res judicata* necessarily involves a judicial determination of some Question of law or issue of fact, in the sense that the decision could not have been legitimately pronounced by the tribunal without at the same time, and in the same breath, so to speak, determining that question or issue in a particular way, such determination, though not declared on the face of the recorded decision, is deemed to constitute an integral part of it as effectively as if it had been made so in express terms"

In the previous case, the court had to find in favour of 1st defendant after finding that 1st defendant is the owner of the mining claims in question and it had to order the ejection of the plaintiff after finding that the plaintiff had no right of occupation, meaning conversely the ownership status of the plaintiff had been considered.

The counterclaim for the eviction of plaintiff in that suit was based on lack of ownership by plaintiff. This is stated in page 2 of the judgment in HB 79-22 which reads thus:-

> "The basis of the defendant's counterclaim is that plaintiff's mining claim was cancelled but that plaintiff continues to occupy Calcite South Mine and continues to mine without a valid permit yet defendant acquired the mining claims known as Calcite 22-28 on 7 May 1986) "

Issue estopped pleaded under *res judicata* is a doctrine that prevents the same parties from litigating the same issue more than once, when it has been finally decided by a competent court. In simpler terms once a court has resolved a particular dispute between parties, those parties cannot bring the same dispute to court again.

As between 1st defendant and plaintiff, the gripe is that of the rights of each to the mining claim and the possession thereof. In HB 79-22 the court found that plaintiff has no rights whatsoever and that they must be ejected. Conversely, the court found that 1st defendant has a right to those claims allowing it to succeed in a suit to evict the plaintiff.

Currently, what is before the court as between 1st defendant and plaintiff is in essence that same issue. For the court to issue an interdict against 1st defendant in this matter, it should 1st find that 1st defendant has no right to be at the mining claim, yet the same court has already pronounced itself, and its order remains extant, to the effect that 1st defendant is rightfully as an owner entitled to the mining claim.

Again by ordering the ejectment of the plaintiff from the mining claim, the court was making a finding that plaintiff has no right to occupy same, meaning plaintiff's ownership and entitlement and rights thereto were found to be non-existent in that case. How does the court now turn around and make findings on the same issue? In other words, if plaintiff were to succeed in the claim, what it would mean is a confusion created by the orders of this court. One says plaintiff has no rights of title and defendant has, so plaintiff must be ejected.

The other says, plaintiff has rights of title, so plaintiff must not be evicted. In other words, what plaintiff seeks is that this court takes back its order in HB 79-22 via the back door.

The very essence of issue estopped pleaded as *res judicata*, was to ensure that the court being a court of law, clothed with judicial authority does not move back and fourth or in a zig zag fashion lest the court itself be the centre of confusion. Once decided, the matter must rest,

it cannot resurrect in another form and with a different name and a couple of other reliefs added to it so that the court is hoodwinked into re-visiting its own decision.

The primary objective of the plea of *res judicata* is to bring finality to litigation making sure that no one is harassed twice for the same cause of action. The eviction suit was successful because the court found that 1st defendant is the rightful owner of the mining claims and that plaintiff was not.

At page 4 of the judgment in HB 79-22 the court stated that last paragraph on that page

> "It is for these reasons that I find that 1st defendant having proven its title---------- while plaintiff failed to produce anything --------- 1st defendant has indeed made a case for the relief that it seeks".

It is for these reasons that I find that the doctrine of issue estopped as a sub species of the plea *res judicata* is available to the 1st defendant in this matter.

Accordingly the Special plea is upheld, plaintiff's claim is accordingly dismissed with costs.

Masamvu & Da Silva-Gustavo Law Chambers, applicant's legal practitioners
Webb Low & Barry incorporating Ben Baron & Partners, 1st respondent's legal practitioners
Civil Division of The Attorney General, 2nd respondent's legal practitioners